

Farhan Rasool v. State of U.P.

Allahabad High Court · Division Bench · 14 November 2019 · Writ-C No. 36544 of 2019 · Writ-C No. 36544 of 2019 · **Writ disposed of; relegated to Clause 6.5; coercive recovery stayed 40 days.**

HEADNOTE

A writ seeking to quash a recovery citation for electricity dues, where the only dispute is the correctness of the bill, is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available. The consumer may approach the statutory authority within two weeks; that authority is to decide by a speaking order after hearing, within 30 days. Coercive action is stayed for 40 days or until that decision, whichever is earlier, and the stay lapses if the consumer does not move the authority in time.

FACTUAL SUMMARY

Farhan Rasool challenged a recovery citation dated 25 September 2019 issued by the electricity department under section 5 of the Uttar Pradesh Government Electricity Undertakings (Dues Recovery) Act, 1958, in pursuance of a 10 July 2019 notice, seeking to recover Rs. 1,89,665 as electricity dues. He disputed the correctness of the bill. The Division Bench heard his counsel and counsel for the electricity department and perused the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-statutory-remedy

HOLDING

A writ challenging a recovery citation for electricity dues, where the consumer disputes only the correctness of the bill, will not be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a statutory remedy. The consumer may approach the appropriate authority under Clause 6.5 within two weeks; that authority is to decide the application by a speaking order after hearing, within 30 days of receiving a certified copy. Coercive recovery is stayed for 40 days or until that decision, whichever is earlier, and the protection lapses if the consumer does not approach the authority in time. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking to quash a recovery citation for electricity dues, where the only dispute is the correctness of the bill, is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE RECOVERY CITATION

The Court declined to examine the bill on merits in view of the Clause 6.5 remedy. ¶ 1